

# NUCLEAR MONITOR

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## MONITORED THIS ISSUE:

|                                                                               |    |
|-------------------------------------------------------------------------------|----|
| MAFIA CLAN CONNECTED WITH<br>TRAFFICKING NUCLEAR WASTE                        | 1  |
| URENCO'S RUSH TO DUMP<br>URANIUM WASTE IN RUSSIA                              | 2  |
| EUROPEAN INVESTMENT BANK<br>BACKING NUKES AGAIN?                              | 3  |
| COMPARATIVE STUDY OF PUBLIC<br>INVOLVEMENT IN RADIOACTIVE<br>WASTE MANAGEMENT | 4  |
| NUCLEAR ENERGY POLICY -<br>CAPSIZING EUROPE                                   | 6  |
| 30 YEAR PRIOR TO CHERNOBYL:<br>MAYAK                                          | 8  |
| THE NUCLEAR-FREE FUTURE<br>AWARD                                              | 10 |
| LET'S GET AUSTRIA OUT OF<br>EURATOM!                                          | 11 |
| IN BRIEF                                                                      | 14 |

## MAFIA CLAN CONNECTED WITH TRAFFICKING NUCLEAR WASTE

Authorities in Italy are investigating a mafia clan for alleged illegal trafficking in nuclear waste and "clandestine production of plutonium". Eight former managers of the country's energy agency Enea were accused of connections with the Silician mafia Cosa Nostra and the Calabrian mafia 'Ndrangheta. The accusation came after a 12-year inquiry into Mafia involvement in nuclear waste disposal.

(661.5832) **Laka Foundation** - Magistrate Francesco Basentini in the city of Potenza, in southern Italy, began the investigation after a confession of an 'Ndrangheta "turncoat," detailing his role in the alleged waste-dumping. Basentini said that two of the Calabrian clan's members are being investigated, along with eight former employees of the state energy research agency Enea.

The 'Ndrangheta mafia, which gained notoriety in August for its blood feud killings of six men in Germany, has been accused by investigators of building on its origins as a kidnapping gang to become Europe's top cocaine importer, thanks to ties to Colombian cartels. But the nuclear accusation, if true, would take it into another league.

The eight Enea managers are suspected of paying the mobsters to get rid of 600 drums of toxic and radioactive waste from Italy, Switzerland, France, Germany, and the US, with Somalia as the destination lined up by the traffickers. These activities took place in the 1980s and 1990s. At the time the eight were based at the Enea facility in Rotondella, a town in Basilicata province in the toe of Italy, which today treats "special" and "hazardous" waste. At other facilities, Enea studies nuclear fusion and fission technologies. Because there was only room for 500 drums on a ship waiting at

the northern port of Livorno, 100 drums were secretly buried somewhere in the southern Italian region of Basilicata. Investigators have yet to locate these radioactive drums.

The 500 drums were buried in Somalia after buying off local politicians. Shipments to Somalia continued into the 1990s, including radioactive hospital waste, and sending them to the sea bed off the Calabrian coast, the turncoat told investigators. Although he made no mention of attempted plutonium production, *Il Giornale* newspaper wrote that the mobsters may have planned to sell it to foreign governments.

"The 'Ndrangheta has no morals and, if there is money in an activity, it will have no problem getting involved, even nuclear waste," said Nicola Gratteri, the anti-mafia magistrate investigating the shooting in Germany in August of six Italians - the most recent episode of a blood feud between clans in the Calabrian village of San Luca, which cast the spotlight on the 'Ndrangheta's global trafficking and drug-dealing business worth up US\$50 billion (euro 35 billion) a year. According to the turncoat, the plan to enter the radioactive waste business also started in San Luca, hatched by its then boss, Giuseppe Nirta.

Rumors on the alleged illegal trafficking

of radioactive and toxic waste are lingering on for many decades. According to an Italian parliamentary study on illegal waste-trafficking issued in November 2000 the mafia controls about 30 percent of Italy's rubbish disposal companies. The so-called "ecomafia" ran companies dealing with about 35 million tons of refuse a year, raking in at least US\$ 6.66bn. The report said: "Radioactive waste from Italy dumped in Somalia may have affected Italian soldiers based there with a United Nations force in the mid-1990s."

The developing South has become the dump for hundreds of thousands of tons of radioactive waste from the world's rich countries, a colossal business which is linked to money laundering and gunrunning, say lawmakers and activists in Italy. "The trafficking of radioactive waste, a large part of which goes to countries of the South, constitutes a business of

gigantic proportions, amounting to more than seven billion dollars in Italy alone," Massimo Scalia, the chairman of an investigative commission set up by the Italian parliament, told Inter-Press Service in May 2001. The Italian justice system is investigating particularly African countries like Somalia, Sudan, Eritrea, Algeria and Mozambique. It was found that two of the methods for getting rid of such waste are dumping it into the sea in special metal containers designed to sink to the bottom, or purposely sinking the ship carrying the waste, and reporting it as an accident.

These activities explain the poisoning of Somali's coastline after the tsunami disaster of late December 2004. The tidal-waves caused leaks in the containers with chemical and radioactive compounds. "There are indications that containers with hazardous chemical and radioactive waste, which were stored in front of the

Somali coasts, have been damaged by the tsunami," UNEP spokesman Nick Nuttall said. According to Nuttall UN agencies working in the north of Somalia are mentioning more and more symptoms of poisoning among the population. Messages like "The inhabitants bleed from the mouth, gets intestine bleedings, show unusual skin rashes or respiration problems" are common.

**Sources:** The Guardian, 9 October 2007 / The Times, 9 October 2007 / Reuters News Service, 8 November 2000 / Inter-Press Service, 7 May 2001 / Het Laatste Nieuws (Belgium), 4 March 2005 / After The Tsunami - Rapid Environmental Assessment, UNEP, 2005

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## URENCO'S RUSH TO DUMP URANIUM WASTE IN RUSSIA

**A German anti-nuclear group says the world's biggest supplier of enriched uranium, Urenco, is frantically seeking German and Dutch transport licenses to send waste to an open-air dump in Russia before Russia stops the dumping at the latest in 2009. Among its worldwide activities, the Anglo-Dutch-German corporation runs enrichment plants at Gronau, near Münster, in Germany and not far away across the border in Holland at Almelo.**

**(661.5833) SOFA** - The SOFA Münster group has information that the Gronau plant, owned largely by German power companies, and the Dutch plant at Almelo currently have no new permits for further nuclear waste transports to Russia. "That is why Urenco is frantically trying to get new licenses from the German finance and environment ministries and the Dutch government."

The latest uranium waste transport that left Gronau and Almelo under protest early October is expected in St. Petersburg (Russia) on October 11. But authorities in St. Petersburg have banned a demonstration against the arrival in the Russian port planned for that day. This year alone Urenco sent five consignments from Gronau and Almelo to Russia, which amounts to almost 10,000 tons of depleted uranium hexafluoride (c. 7,000 t of depleted uranium) which is created as waste in

uranium enrichment.

Urenco is putting on a lot of pressure because of the increasing public anger in Russia, The Netherlands and Germany the Russian atomic energy authority Rosatom has announced an end to the uranium waste transports by 2009 at the latest. "Until then Urenco wants to tip as much uranium waste as possible at the Ural and in Siberia on open air paddocks for 'final storage'," SOFA writes.

In Germany the permits are issued by agencies of the finance ministry subject to approval by the environment ministry. Both ministries are also responsible for the superordinate general export permit. That means the two 'end nuclear' ministers, Gabriel [environment] and Steinbrück (finance) have been responsible for the transports to Russia since 2005.

Spicy note in the margin: in February 2005 the state government of

North-Rhine Westphalia approved expansion plans for the Gronau enrichment plant - when Steinbrück was premier of the state. The then atomic energy minister Horstmann is now lobbyist in North-Rhine Westphalia for EnBW [the third-largest utilities company in Germany]. Just as 'cute' is that the original export permit was issued under the then federal minister for the environment, Angela Merkel [now chancellor of Germany]. "In other words, the federal government is stuffed full of loyal Urenco fans." SOFA writes.

"Export of uranium waste is a purely political decision, because if the waste stayed in Germany the government itself would have to see to final storage - and that is known to be impossible anywhere, least of all in [the German dump sites] Ahaus, Gorleben, Schacht Konrad, Asse, Morsleben, Greifswald etc. "So it makes a lot of sense for the federal government to allow Urenco to

export to Russia."

But international resistance is growing constantly. The international uranium conference at the end of September (attended by some 100 people from 5 countries) and constant

publication of protests against secret transports show that Urenco is slowly but surely going on the defensive. "In a cyber action 700 mails from Russia arrived in the Dutch environment ministry a few days ago demanding an

immediate stop to the uranium waste transports. Only public pressure will achieve anything!"

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## EUROPEAN INVESTMENT BANK BACKING NUKES AGAIN?

On September 24, the European Investment Bank, under the wildly euphemistic title *"EIB invests in diversification of energy sources"* announced that it had signed a Euro 200 million (US\$ 280 million) with Urenco Ltd for the expansion of two uranium enrichment plants in the UK and the Netherlands(1), heralding an interest in nuclear not seen in the EIB for years.

(661.5834) CEE Bankwatch - The European Investment Bank financed nuclear electricity generation for about two decades up to the mid-1980s. Projects related to the nuclear fuel cycle were financed up to the early 1990s. Putting aside its consultancy work for Euratom, the last loan the EIB itself gave for the nuclear sector was to Slovenia in 2002 for decommissioning the former uranium mine at Zirovski Vrh. Financing of nuclear generation has followed the general trend in nuclear investments in the Member States, which reached a peak by around the second oil crisis and declined substantially by the mid-1980s. The Bank's action has been in line with the above Community policy. Most of the projects financed by the Bank were located in France, Germany, Belgium, the UK and Italy. In all, the Bank has lent EUR 6.6 billion for investments in the sector, including nuclear power stations, experimental nuclear power facilities, and facilities related to the nuclear fuel cycle. The EIB's interest in financing new nuclear plants had rapidly dwindled after Chernobyl, but it seems the bank may be buying into the hype of nuclear as a solution to climate change.

As the EU's house bank, which is

supposed to follow EU policy, the EIB's role in following the "Energy policy for Europe" which ensures full respect for Member States' choice of energy mix, is ambiguous. During the summer the EIB published two new documents on its energy policy during the summer - "EIB and financing of nuclear energy"(2) and "Clean energy for Europe - a reinforced EIB contribution"(3), both of which indicated benefits but also large problems with nuclear but indicated a potential interest by the EIB in financing nuclear projects.

In "Clean energy for Europe", the EIB indicates clear interest in supporting the ITER nuclear fusion research project, and research into nuclear waste and safety. Concerning new nuclear plants, its position is more ambiguous: The "EIB and financing of nuclear energy", states that:

*"The Bank ensures that all the projects that it finances are economically, technically, environmentally and financially viable, and that they comply with EU and national law as well as EU policies."*

By any reasonable assessment one would expect this to clearly exclude new nuclear power plants, however among the "economically, technically,

*environmentally and financially viable"* projects that the EIB has financed in the past are the bankrupt Channel Tunnel and London Underground PPP, as well as a host of environmentally damaging projects such as new motorways, airport expansions, oil pipelines and incinerators.

The EIB has not yet been approached to finance any new nuclear power plants, but it is surely watching the public reaction to the Urenco loan carefully to see what it can get away with in the future.

1- <http://www.eib.org/projects/news/eib-invests-in-diversification-of-energy-sources.htm>

2- <http://www.eib.org/about/publications/eib-and-financing-of-nuclear-energy.htm>

3- <http://www.eib.org/about/publications/clean-energy-for-europe.htm>

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# COMPARATIVE STUDY OF PUBLIC INVOLVEMENT IN RADIOACTIVE WASTE MANAGEMENT

The concluding seminar in the Swedish CARL Project, which has analyzed and compared decision-making processes concerning radioactive waste management in Belgium, Slovenia, Sweden and the U.K.(\*) was held 25-27 September in Oskarshamn, one of two designated host communities for Sweden's high level waste repository.

(661.5835) WISE-Stockholm - In the space of two-and-a-half intensive days, four teams of social scientists, who have studied the respective national processes over the past three years, summarized their findings. The meeting also included three working group sessions in which mixed groups of participants - nuclear industry people, regulators and representatives of presumptive site communities and NGOs - discussed the information presented in the light of their experience.

The four countries contrast in many respects. Whilst the process is nearing completion in Sweden, it is only starting in Slovenia; whereas local government has the right of veto in Sweden and Slovenia, the national government has final authority in Belgium and the U.K. Whereas the participatory process in the U.K. has gone back and revisited 'first principles', in Sweden most of the basic parameters were decided in earlier, less participatory phases of the process. The countries' political structures differ, as does the strength of the respective non-governmental infrastructures, so-called 'civil society'.

Sweden is unique in that the tasks of developing a storage method and designating a site have been left to the nuclear power industry; in the other countries a public body of some sort is in charge. The Swedish project is also unique among the countries in that it includes irradiated nuclear fuel.

All four countries have one thing in common, however: the more or less participatory processes represent second attempts after technocratic, top-down efforts to site nuclear waste repositories in the 1970s and 1980s had failed. In the terminology of the project the study focused on the transition from 'government' to

'governance'.

## Ambivalence

A certain ambivalence was notable among the scholars and the actors in the respective processes alike. Is the prime objective of opening the process to public or stakeholder involvement (SI) to enhance the legitimacy of the process? To facilitate consensus, to oil the wheels of the process? Or, is it to broaden and enrich the basis for decision-making? Most would agree that it is all three, but the emphasis on the former motives surfaced, especially when issues relating to NGO involvement were raised.

In this connection several of the researchers discuss how participatory processes can be used to mask essentially technocratic decision-making. In the words of one team(\*\*): "... [U]nder the surface of formally accepted participative approaches technocratic paternalism remains strong. There are even indications that it is growing again" (p 5). Another team: "... [I]t has been clear that the new culture of transparency and openness requires commitment at the most senior levels and continuing effort if it is to be maintained. ... We have witnessed tokenistic use of public and stakeholder engagement by the nuclear industry" (p 7). And a third: "In fact, a strong separation between technical actors and all the rest is maintained, however disguised by talk and activities framed as stakeholder and public involvement" (p 20)

Similarly, the studies reveal how ostensibly technical decisions and preferences often contain elements that are essentially social, but that it is not made transparent. The authors write: "Examples show that partnership is no guarantee for avoiding a situation where technical experts take care of issues

that include important social choices" (p 18). They urge the processes to "identify the social in the technical" and not to be afraid to broadly discuss technical issues as social choices.

There is inevitably some degree of trade-off between efficiency and democracy in participatory processes. In a discussion of the representativeness of the stakeholder groups the CARL group comment: "...[E]xperience in both Slovenia and the U.K. has shown that attempts to involve critics can be difficult and that the process runs much more smoothly when they leave. This result may seem desirable but in any specific case there is a need to consider whether the loss of critical voices ... could in any way undermine the longer term effectiveness or legitimacy of the process" (p 30).

## 'Trust' - how to 'build' it, how to 'earn' it?

'Trust' was another recurrent topic. The choice of verb raises the question: Can trust actually be 'built', orchestrated? Is it not something that arises out of less goal-oriented factors like mutual respect? One prerequisite, the CARL group note, is a willingness to engage in non-confrontational discussions.

The scope of participation has broadened over the course of all four processes. Speaking of the most participative models, the CoRWM project in the U.K and a similar project in Canada., the team note: "[The consultations] may not have led to full public empowerment, genuine upstream framing of issues or co-determination of decisions. They did however raise opportunities for peripheral actors to have some form of input in the decision-making process" (p 12f). Indeed, in no way does broader participation guarantee the redistribution of power. Genuine power-

sharing or instances of 'co-governance', found in studies of other processes, were not observed in any of the radioactive waste management (RWM) cases, the scholars note.

#### **Voluntarism: pro and con**

The issue of 'voluntarism' - that political willingness of local communities assumes greater importance than geological and other technical criteria in the siting decision - was another recurrent topic. In all four countries the siting process ultimately has settled on so-called 'nuclear communities', that is, communities that already host a nuclear power plant or and/or intermediate waste storage facility. This, whether the result of a process of self-selection or designation on the part of national authorities. Several participants from such communities felt they really had no choice. Although not necessarily coerced, the social and economic pressures within the community, coupled with benefits that can be gained in negotiations with the national government, rendered the choice inevitable. Particularly communities that already have an intermediate repository felt they had no choice. If they said No and the government could find no willing alternative site, the waste would remain anyway - and the community would have foregone the opportunity to bargain for favours.

Voluntarism also has some more broader implications. In a report from 2005 the Swedish CARL team write: "Voluntarism has served to lock the siting process into established nuclear communities in Sweden. ... Physical geology has only assumed a dominant role in the siting of KBS-3 after the commencement of site investigations in 2002. Up until the choice of Oskarshamn and Östhammar as sites for site investigations political geology was the dominant factor."

Voluntarism also presumes that the "how"-question can be divorced from the "where"-question, i.e., that the reliability of the storage method is independent of its physical surroundings. Judgments on this point vary. A key factor is whether the repository's safety depends on natural barriers. Surprisingly, SKB in Sweden,

the only country where the project includes high-level waste, is the most radical proponent of divorcing method from site. The reason, the authors point out, is that SKB hopes to commercialize and export their KBS-3 scheme as a 'global brand' (p 25).

#### **National vs. local**

In addition to the tension between governmental authority at local and national level - "the communities discuss, the national governments decide" - the CARL project notes a difference in orientation of the decision processes at the respective levels. Discussions at national level are policy-oriented, whereas the process at local level tends to be more project-oriented, as one researcher put it.

This last observation struck a chord in this reporter, who has represented national NGOs from time to time at local consultation sessions here in Sweden. The mismatch between orientations has been a source of great frustration. Had we NGOs a choice, we would naturally prefer to take part in policy discussions in regional and national consultations, but we have been denied access to those arenas. By and large, public participation in the industry-administered RWM process in Sweden seems to have been much more authentic in the candidate communities than at national level.

One serious pitfall that participative processes must avoid is the frustration caused when participants' expectations of the process are not fulfilled. "Careful management of the process can minimize the problem," the CARL researchers write. In the next breath, however, they recognize that "'managing expectations' can come very close to presetting the terms of the process and allowing little scope for stakeholders to exercise influence" (p 28). Those responsible for the processes tread a narrow path. 'Manipulation' is an ugly word; it lured for the most part offstage at Oskarshamn, but most of the CARL researchers seemed mindful of the ever-present risk. One team offer a radically simple remedy: "Discuss what [can] be changed and what [can] not be changed, and why" (p 19).

The overall purpose of the CARL project (Citizens-Agencies (RWM)-Research organisations-Licensing and regulatory bodies) was to try to identify principles that seem to foster progress and good results of participatory processes. One of the general conclusions of the project, however, is that there can be no general rules; it is necessary to enter into each process with an open mind and to adapt the process to the situation at hand.

The results of the CARL project, too, are dependent on the "situation at hand", i.e., the countries studied. As one researcher put it, "We might have arrived at a very different set of variables, had Germany or France been included."

The studies presented in Oskarshamn seem to be solid social science. Anyone who is or may be involved in this kind of process will find something of value in the findings. Check [www.CARL-research.org](http://www.CARL-research.org) for country reports and the final report, which is expected to appear in the next few months.

\*) The researchers: Anne Bergmans, University of Antwerp; Drago Kos and Marko Polic, University of Ljubljana; Mark Elam and Göran Sundqvist, Göteborg University; and John Walls and Peter Simmons, University of East Anglia.

\*\*) The quotes in this report are taken from a draft entitled, "CARL Thematic Reports: Summary of Key Findings and Lessons Learned" (September 2007; 31 pp), circulated at the meeting.

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# NUCLEAR ENERGY POLICY - CAPSIZING EUROPE

On October 1, in Madrid, things became very obvious: the Commission finally gave up, even to pretend that it is energy resource neutral since energy sovereignty is still under the sole discretion of the EU Member States. The former cautious treatment of nuclear policy issues by former Commissions has been exchanged with open applause for nuclear expressed by high-ranking EU politicians.

(661.5836) Doerte Fouquet - During a conference in Madrid in honour of late Energy Commissioner Loyola de Palacio her successor, Mrs Neelie Kroes explicitly declared to be "completely in favour of nuclear energy". And Commissioner Andris Piebalgs asked to be courageous and to discuss the nuclear subject and President Barroso underlined his standing opinion, that for the sake of climate protection the nuclear option could not be ignored.

Especially Mrs. Kroes outing just after her Directorate General hat turned around on steady EC ruling not to allow State Export guarantees for intra EU trade, met with astonishment and strong reaction. Green MEP's asked President Barroso for her dismissal on grounds of subjectivity and demanded also to re-examine the September decision to clear French export credit guarantees to Areva, the state-owned nuclear energy champion, for a reactor in Finland. "It is inconceivable for the EU competition commissioner to be neutral when assessing illegal state aid for nuclear power, while at the same time being 'completely in favour of nuclear power', even if this is in a personal capacity," they said.

The Commission had indeed denied state aid involvement and on September 25, cleared a Euro 610 million (US\$ 857 million) export credit guarantee from French export credit agency COFACE to French nuclear vendor Areva for the Olkiluoto-3 nuclear reactor in Finland. The EC states the French COFACE export agencies' loan to Finnish power company TVO to buy a reactor from Areva, does not constitute illegal state aid because it was at a market rate and TVO could have got the money privately, it said. At the beginning of full investigation in October 2006 the Commission had underlined, that investigation is necessary since "On the basis of

current information available to it, the Commission considers that it cannot be excluded that the provision of such a guarantee . . . may have lowered TVO's financial cost below the levels corresponding to market conditions."

"It is only legitimate that this investigation be reopened under the charge of a clearly impartial arbiter," the Greens' letter said. The Commission very quickly denied any wrong doing. But some governments said they would be watching future decisions carefully. A spokesman for the German minister for the environment, Sigmar Gabriel, underlined that the nuclear industry was dependent on state money. "No nuclear power station can be built without state help. It is not a free market. The Commission has to act as watchdog." This is exactly what the Commission seems no longer willing to do when it comes to nuclear.

It may be that for the sake of shielding nuclear from competitive market conditions and in order to fence out non EU competitors the Commission had turned her back on her own constant practice. The procedure and ruling up to this precedent of the Commission against export guarantees within the EU can best be underlined with a quotation from EC Decision 416/84 (against France, not to grant any export aid for a power plant construction in EU Member State Greece) and the following key opinion: "With regard to export aids applied in intra-Community trade, the Commission has always held the view that they are incompatible with the common market within the meaning of the Treaty." In March 2007 the European Federation of Independent Renewable Energy producers (EREF) had filed annulment procedure before the European Court of First Instance against the decision of the European Commission in the above case of TVO, that a syndicated loan with less than 2.6 % interest rates to

the Finnish company TVO who ordered the plant from Areva/Siemens does not constitute state aid. The nuclear power plant was assigned by the Finnish electricity company TVO to a consortium of the companies Framatome-ANP (national French enterprises) and German Siemens company at a fixed price of 3,2 billion euro.

These companies are currently building the plant and will deliver it to TVO. The financing of 1.6 billion euro is achieved by a credit to the Finnish company TVO with an interest rate under 2.6% by a consortium of five banks, under prominent participation of the public German Bayerische Landesbank.

Part of the annulment action is that the Commission has separated the question of the COFACE guarantee from the evaluation of the loan agreement. The Commission does not seem to have respected its own formal view and notice on public guarantees and state aid either which shows that not only can a borrower perhaps not obtain the secured loan in the current format but rather the entire project could not have proceeded. As the Commission's draft Notice states: *Typically, with the benefit of the State guarantee, the borrower can obtain lower rates and/or offer less security. In some cases, the borrower would not, without a State guarantee, find a financial institution prepared to lend on any terms. State guarantees may thus facilitate the creation of new business and enable certain undertakings to raise money in order to pursue new activities or simply remain active instead of being eliminated or restructured, thereby possibly creating distortions of competition.*

EREF had filed its complaint on several grounds concerning the TVO deal in December 2004 already. The whole TVO venture is not feasible without an orchestrated deal design,

where the COFACE guarantee cannot be seen separated from the acceptance of the banking consortium to go for such cheap deal which may cost them dearly.

The financing of the Olkiluoto project leads to the foreclosure of the Finnish market especially for renewable energy. One reason for TVO to apply for the construction license was its own forecasts regarding generating capacity. It showed that some 2,000 MW of generating capacity, which is mainly based on imported coal, will reach the end of its operating life between 2010 and 2015. Bridging this gap with artificially cheap nuclear electricity, receiving in EREF's view illegal state aid, directly prevents competitors from entering this market segment for selling electricity or investing in new projects. This state aid artificially lowers the price for electricity from nuclear making it impossible for renewable energies to compete with this price. Such circumstances are acknowledged by the European Commission as main source for market closure and failure. And to stop such barriers to entry for the renewable industry produced by illegal state aid to nuclear industry is the core interest of EREF.

This prevention of market entrance by illegal favouring nuclear energy with subsidies or state aid is also underlined by the fact that the full potential for development of renewable sources, eg wind power and bio-energy, has not been realised in Finland since the decision for the TVO project was taken. It is assumed that the potential for bio-energy amounts up to 0,4 -0,8 of one nuclear unit of 1000MW(\*1) which is equivalent of 400 -800 MW. For wind power the theoretical capacity would amount up to 50 TWh.(\*2)

The current crisis for the building consortium for the reactor caused by the enormous delays in construction serves also as an indicator for the potential of market closure due to the potential supply by TVO. Contrary to the original planning, the construction work will not be finished before 2011 and therefore the reactor will not be able to start operation in 2009 as planned(\*3). This two years delay and

the official data available(\*4) lead to the following assumption: the production and supply capacity of the new nuclear plant is approximately 13 TWh per year, leading to 26 TWh for a period of two years. Assuming operation costs of 10 Euro/MWh and a market price of 40 Euro/MWh this would result in a claim of  $26 \times 30 \text{ MEuro} = 780 \text{ million euro}$ (\*5), TVO could potentially request from Areva and Siemens based on the turn key contract conditions. This also illustrates the potential of a lost market for other producers and suppliers of electricity and by that also for the members of EREF as renewable energy producers. By granting illegal state aid, all third parties in the energy producing sector and also the independent renewable energy producers represented by EREF, already directly lose the chance to bid for the supply of electricity replacing the coal electricity to TVO. According to news reports, Taisto Turunen, Director General for Energy at the Finnish Ministry of Trade and Industry has underlined "the delays in the Olkiluoto-3 nuclear plant unit mean increasing dependency on imported power for Finland." He says that the country even has to prepare for electricity saving measures in peak consumption season in winter 2011. The shortage of low-cost nuclear energy in production also adds to the pressure on the price of domestic power. TVO, plant construction client, is not willing to comment on the losses caused by the delays and possible contractual penalty required from the supplier at this point." (\*6)

Without transparency, there can, for obvious reasons, not be an independent and valid economic analysis of the contested credit arrangements. In view of EREF the Commission did not then nor now provide "adequate reasoning" on the specific facts of the credit arrangement and has, in the pending case, therefore failed her public mandate on the field of the protection of competition. It seems that the Commission wants to outline in this TVO decision that only short term credits are relevant to the comparison of the variable rates of the credit facility, not the long term loans. But she does not provide the precise duration of the contested credits, she only states that they are long term

loans. This leads to the question of how TVO's Olkiluoto-3 is financed: Normally, all nuclear power facilities are financed on long term loans, because nuclear power facilities only amortise in long periods. To finance a nuclear power plant on the basis of short term loans seems to be fraught with risk. The Commission should have provided reasons, why TVO did not receive long term loans for Olkiluoto-3, to prevent the suspicion that this is the result of the high financial risk of the project. Unfortunately this seems not to have been analysed deeply enough by the European institution. The mere existence of the COFACE guarantee reduces TVO's overall credit risk and raises its credit rating so drastically that all other banks were able to grant the credit facility where they otherwise would have declined the facility under the current conditions. This is not viewed as such by the European Commission.

It remains to be seen how the Court of First Instance will evaluate and judge this case.

**Sources:** \*1) Ms. Satu Hassi, MEP and former Minister for the environment in Finland at the PRASEG Seminar on "Deciding on Nuclear" of 9 November 2005, protocol p. 3; source:

<http://www.satuhassi.net/puheet/praseg.pdf>.

\*2) Ibid.

\*3) Frankfurter Allgemeine Zeitung, Nr. 185 / 2007, 11 August 2007, p. 13.

\*4) Stated on <http://www.tvo.fi/692.htm> and in the Construction License of the Finnish Ministry of Trade and Industry, of 17 February 2005: Government Decision on the application by Teollisuuden Voima Oy to obtain a licence, as referred to in section 18 of the nuclear energy act, for the construction of a nuclear power plant unit on the Olkiluoto plant site in Eurajoki (unofficial translation), p. 1.

\*5) The adequateness of these figures is underlined by the considerations of Areva to make new provision of around 500 -700 mln euro, vid. Le tribune, 13 August 2007.

\*6) Esmerk, Helsingin Sanomat, 10 August 2007.

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# 30 YEARS BEFORE CHERNOBYL: MAYAK

If it weren't for the Chernobyl accident, the world might have never known that deep in the heart of Russia, at the foot of the Ural mountains, where Europe meets Asia, there had already been an accident similar to the latter in its scale. The location of that first nuclear catastrophe remained confidential for a long period of time. It never had an official name, and was thus only known as the 'Kyshtym crash', after a small old town not far from the secret city of Chelyabinsk-65 (today known as Ozersk) where the said tragedy took place.

**(661.5837) Ecodefense** - Long before it was decided to use nuclear power for energy production, scientists had discovered its horrifying destructive force for arms production. Nuclear arms production. Weapons which, if used, could destroy the very life on Earth. Thus, before the Soviet Union produced its first nuclear bomb, scientists built a factory in the Urals to manufacture its core. That factory was named Mayak (Lighthouse, beacon; in Russian).

During the production of the materials needed for the manufacturing of a nuclear bomb, scientists did not worry about environment or health issues. They were more afraid to fail a state assignment. To obtain the necessary substances for an atomic bomb - uranium and plutonium - they had to conduct many a chemical reaction. As a result, they acquired not only the above-mentioned chemicals, but also large amounts of radioactive water (i.e. fluid radioactive waste).

Even then the scientists had already divided radioactive waste into three categories, depending on the level of radioactivity: Highly Radioactive Waste (HRW); Medium Level Radioactive Waste (MRW) and Low Level Radioactive Waste (LRW). The waste contained large amounts of traces of uranium, strontium, cesium, plutonium and other radioactive elements.

At first the radioactive water was dumped directly into the river Techa, on the bank of which the factory stood. However, when deaths occurred in the villages on the banks of Techa, scientists decided to limit the wastage dumped into the river to the Low Level Radioactive Waste. The Medium Level Radioactive Waste was now dumped into the lake Karachai; while the Highly Radioactive Waste was kept in special corrosion-proof containers - "tanks" -

that were located in concrete basement storage areas. As a result of the radioactivity of the substances, however, these tanks heated up immensely and were thus required to be cooled down with water over their entire surfaces. Every "tank" had its own cooling system and control system, to keep its content under control.

Towards the autumn of 1957, the performance of the measuring devices that were borrowed from the chemical industry and were kept in the storage areas grew unsatisfactory. As a result of the highly radioactive nature of the cable conduits in the storage areas, the latter were not renovated.

At the end of September 1957 a serious brake-down of the cooling system as well as the control system on one of the tanks occurred. That day, factory workers who were conducting check-ups on the tanks discovered that the tank was highly heated. However, they were not able to report this to the management. The tank exploded. The self-combustion of the 70-80 tons of highly radioactive waste mainly consisting of nitrate-acetate compounds, resulted from a malfunction of the cooling system because of corrosion and failure in the control system of one of the containers (with a volume of 300 cubic meters). On September 29, 1957, at 4 P.M. local time, the evaporation of water, drainage of the remains and its heating up to 330-350°C resulted in the explosion of the contents of the container. The force of the explosion that was similar to a gunpowder explosion was judged to have been up to 70-100 tons of trinitrotoluene (TNT).

The complex containing the exploded container was an underground concrete construction with cells (i.e. trenches for

the installment of 20 containers). The explosion completely destroyed the corrosion-proof container located in a concrete trench 8.2 meters deep in the ground. It also tore off and threw the concrete cover of the trench to a 25 m distance.

20 million curies (Ci) of radioactivity was thrown into the air of which 18 million (90%) landed within the Mayak complex. Radioactive pulp of 2 mln Ci with a volume of 250 cubic meters was thrown up to 1-2 km into the air and created a radioactive cloud consisting of liquid and firm aerosols. The south-western wind with a velocity exceeding 10m/sec that was present in the top layers of the aerosols spread the latter around. Four hours after the explosion the radioactive cloud moved a 100 km, and after 10 -11 hours the radioactive trace was completely shaped. The two million Ci that descended onto the ground formed a polluted area that spread out for 300 -350 km to the north-east of the Mayak factory. The border of the polluted area was traced along a chorisopleth (a line on a map defining a region with homogeneous statistical data; here: density of pollution) with a pollution density of 0.1 Ci/m<sup>2</sup> and a territory of 23000 km<sup>2</sup>. As time went by, these borders were blurred as a result of the movement of radionuclides by air.

Soon after the territory was named Eastern Ural Radioactive Trace (EURT), while the main part of it that was most polluted (700 km<sup>2</sup>) received the status of Eastern Ural national reserve.

The maximum length of the EURT is 350 km and is just a small distance away from one of Siberia's largest cities: Tyumen. The EURT's width reaches as much as 30-50 km at places. Within the margin of the chorisopleth of 2 Ci/m<sup>2</sup> on strontium-90



there is a territory of almost 1000 km<sup>2</sup> (105 by 8-9 km).

The radioactive pollution zone contains a territory invading three provinces: those of Chelyabinsk, Sverdlovsk and Tyumen with a population of 270.000 people previously inhabiting 217 cities and villages. 23 villages were evacuated and destroyed; wiped off the face of the earth. Cattle was killed, clothes burnt, food and demolished buildings dug into the earth. Ten thousand people who had suddenly lost everything were left helpless and departed to their relatives.

An investigation on the part of the nuclear industry after the accident concluded that the most probable cause was the explosion of dry salts of nitrate and sodium acetate that were formed as a result of the evaporation of the solution in the container because of its self-combustion after a malfunction in the cooling system.

However, so far no other, independent investigation was carried out and many scientists believe that the Mayak explosion was a nuclear one. Fifty years after the catastrophe the technical or chemical reports of it have not been published.

4 P.M. on September 29, 1957 have come to constitute a black page in the history of the Urals. At the time 272 000 people lived on the polluted territory. It is a day that divided the lives of the people of Ural into two: before and after the explosion.

Hundreds of thousands of people were needed in order to liquidate the consequences of the explosion, i.e. to wash the industrial territory of Mayak with water and discontinue any economic activity in the polluted zone. Young men from close by cities and

towns of the Chelyabinsk and Sverdlovsk provinces were mobilized for the liquidation unwarned of the dangers. Whole military units were brought to surround the territory of the liquidation and were prohibited from telling where they had been. Children of

In 1989, after more than thirty years of attempting to cover it up, the (then) USSR finally admitted the accident at Mayak (often referred to as Chelyabinsk). In July 1989, during public discussions about proposals for the construction of the nuclear reactor at Chelyabinsk the first official confirmation of the 1957 accident was given.

In the West, the accident was already publicly known since 1976, when Zhores Medvedev (a Russian refugee biochemist) mentioned it in an article in the British magazine *New Scientist*. The first response was skepticism even among Western experts. The CIA said there had been nothing but a minor accident and the chairman of

the British Atomic Energy Authority the accident as "a figment of the imagination". Medvedev then wrote the book *"Nuclear Disaster in the Urals"*.

The CIA had documented some kind of nuclear accident already by the beginning of 1958. Western intelligence registered in the following years "unusual amount of attention" being given to radiation sickness in Russian medical journals. It was not made public, some think because reports on another major nuclear accident (the Windscale fire in October 1957 in mind) could jeopardize the nuclear program. **(box Laka Foundation, file Mayak 1957)**

7-13 years of age from the surrounding villages were sent to dig radioactive crops into the ground, as it was autumn. Mayak even used pregnant women with any period of pregnancy for liquidation-related works.

In the Chelyabinsk and in the atomic city of the region the death rate was immense. People died at work; deformed babies were born; whole families died out.

Nadezhda Kutepova, representative of the "Ecodefence" group in Ozersk: *'My father was 17 years old and studied at a technical school in Sverdlovsk (now Ekaterinburg). On September 30, 1957 along with fellow students he was put on a truck and brought to Mayak to liquidate the consequences of the crash. They weren't told anything about the gravity of the danger of radioactivity. They worked for days. They were given individual dosimeters, but over-dosage was punished, so many left their dosimeters in their clothes boxes, to not 'have a too high a dosage'. In 1983 he was diagnosed with cancer and referred to Moscow for surgery, but died three years later as metastases*

*started to appear all over his body. We were told then that it wasn't because of the crash, and only later the disease was officially recognized to have been a consequence of the Mayak accident. My grandmother also participated in the liquidation works and received a dose of 770 rem (Roentgen Equivalent Man). I never saw her because she died of lymphatic cancer long before I was born (eight years after the crash).'*

Gulshara Ismagilova, inhabitant of the Tatarskaya Karabolka village: *'I was nine years old and was studying at school. They gathered us and said that we will be harvesting. It appeared strange to us that, instead of harvesting, we were told to dig the crops into the ground. Meanwhile police had surrounded us so that we couldn't run away. In my class the majority of the students later died of cancer, and the ones that were left were very ill, the women suffering from infertility.'*

Natalia Smirnova, inhabitant of Ozersk: *'I remember that in the city there was a horrible panic at the time. On all streets cars were driving around and washing them. We were told on the radio to throw away everything that we had in the house and to wash the floors constantly. Many people, workers at Mayak, fell ill with the acute radiation sickness, everyone was afraid to say or ask anything out of fear to get fired or even arrested.'*

P. Usaty, Novo-Pavlovka village, Krasnodarski region: *'I served as a soldier in the closed zone of Chelyabinsk-40. On his third shift, a fellow countryman from Yeysk fell ill; when we came back from work he died. At the transportation of cargoes in train carriages we stood on posts an hour each until our noses bled (a sign of acute irradiation - author's note) and our heads hurt. On the sites we stood*

*behind a two meter high led wall, but even that didn't help. During the demobilization we had to sign a non-disclosure form. Out of the conscripts there are just three of us now - all handicapped.'*

It was an enormous catastrophe. Yet it was hidden. Because the state did not need people, it needed bombs. The latter, not even having become bombs, killed and continue to kill large amounts of people.

Only after the Chernobyl disaster many in the Chelyabinsk region understood that they could now talk about the Mayak disaster. Thus, in the early 90s, over 30 years after the catastrophe, a report of it was published for the first time. To at least compensate the harm somehow, a law was passed on social security for those harmed by the catastrophe. However, no-one will ever

know exactly how many people died because of it, as, until now, the Tatarskaya-Karabolka village with its 7(!) cemeteries and 400 inhabitants is still left on the radioactive trace. Because of the genetic harm of radioactivity three, four and even five generations of people exposed to radiation will fall ill with untreatable illnesses. According to the new law currently under consideration in the Russian Duma those harmed as a result of the explosion at Mayak have a right to a compensation of 37 Russian rubles (approx. 1 euro.) A month for food.

Today, 50 years have passed. Mayak is still working. The people working there and living near it are accumulating plutonium, cesium and strontium in their bodies. As before, every second, every minute, and even as you are reading this lesson, Mayak is producing

tons of radioactive waste that remains after reprocessing fuel from nuclear power stations. And, as before, it dumps the waste into the water, only not the river Techa, but the lake Karachai. This means everything can repeat itself. Do we need that?

In one of the villages left on the polluted ground, children wrote the following poem:

*The beams of Mayak are not those of salvation,  
Strontium, Cesium, Plutonium are its executioners.*

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## THE NUCLEAR-FREE FUTURE AWARD

Since 1998 the Nuclear-Free Future Award (NFFA) has annually honoured the visionaries and architects of a nuclear-free planet. The Award is given out in four categories: Resistance, Education, Solutions (all with a US\$10,000 -7,120 euro- money prize), and the Lifetime Achievement.

**(661.5838) NFFA** - The 2007 Awards ceremony will take place at the Salzburg Archbishop's Residence on 18 October. The international event in Austria will bring together scientists and activists to discuss the issue of nuclear energy and climate change. An international jury has selected as this year's recipients:

### **Charmaine White Face and the Defenders of the Black Hills, USA (in the category solutions)**

Charmaine is the founder and coordinator of Defenders of the Black Hills, a group of volunteers whose mission is to preserve, protect, restore and respect the area of the 1851 and 1868 Fort Laramie Treaties that were made between the United States and the Great Sioux Nation. The group monitors abandoned uranium mines on sacred Lakota Lands and seeks the remediation of hazardous waste ponds that contaminate the region with high levels of radium 226, arsenic, lead and iron.

### **Prof. Dr. Siegwart Horst Günther, Germany (in the category education)**

He was the first to demonstrate the medical connection between the 'Gulf War Syndrome' and the US military's widespread use of shells hardened by depleted uranium (DU). This year the Nuclear-Free Future Award honors for the third time a scientist who at least is doing whatever he can to find out what really happened (in f.i Iraq) and visits countries to study the real-life consequences of DU-use.

### **Tadatoshi Akiba and Mayors for Peace, Japan (in the category of solutions)**

In 1982 Takeshi Araki, then mayor of Hiroshima, came up with a simple idea: what would happen if all the mayors of the world declared their cities nuclear-free zones? So began the movement that became known as, 'Mayors for Peace,' and to this day (October, 2007) has grown to include some 1698 cities in 122 countries. Since 1998, Hiroshima mayor Tadatoshi Akiba has headed this organization that transcends national

borders and allows citizens from around the globe to work together to press for the abolition of nuclear weapons.

### **Freda Meissner-Blau, Austria and Prof. Armin Weiss, Germany (Lifetime Achievement Award)**

Two veteran mentors of the Middle European anti-nuclear movement - she in Austria fighting against Zwentendorf, he in Germany pushing to terminate the construction of Wackersdorf. The two Lifetime Achievement Award recipients - today, both over 80 years of age - remind us of our duty to wage peace for a nuclear-free future in the name of the coming generations.

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# LET'S GET AUSTRIA OUT OF EURATOM!

Governments of non-nuclear EU member states proved unable, or unwilling, to push for a reform of the European Atomic Community (Euratom) during the EU constitutional process (2001-2004), when even a single country could have made a Euratom revision conference a condition for its approval of the constitution treaty. This opportunity having passed away, what a non-nuclear country can now do on its own without having to wait for the approval of all 26 other Euratom member states is to withdraw from the Euratom treaty and community.

Austrian NGOs have been waging a campaign aimed at just such a withdrawal since the beginning of this year. (Continued from "EURATOM: Countries free to step out", *Nuclear Monitor* 658, 13 July 2007)

**(661.5839) PLAGUE** - In January this year, three months ahead of the 50th anniversary of the EURATOM Treaty, all five major Austrian antinuclear and environmental organisations except WWF Austria joined to launch the Leave EURATOM Campaign. *The Upper Austrian and Salzburg Platforms Against Nuclear Dangers, Global 2000* (the Austrian branch of Friends of the Earth), *Greenpeace Austria*, and the *Federation of Austrian Nature Conservation Organisations*, demand from the Austrian government and parliament to head for the termination of Austria's membership in Euratom and withdrawal from the Euratom Treaty (ET). Meanwhile, around a dozen other organisations have joined in, most importantly *Attac Austria* (see box)

## Why should Austria quit Euratom? (The NGOs' motives)

1. Austria has been a member of the Euratom Treaty (ET) and the European Atomic Community (EAC) since its accession to the Union on Jan. 1st, 1995. While the Austrian government tried to completely keep the lid on the Euratom issue in the years before, the antinuclear movement did manage to build up some pressure. Thus it was only thanks to parts of the civil society that the government negotiated a Common Declaration with the European Commission, according to which Austria could keep its own, non-nuclear energy policy despite membership in Euratom. It is quite likely, though, that this Declaration would not hold water if someone entitled to do so filed a complaint against it with the European Court of Justice, for instance a utility wanting to build a nuclear installation in Austria (M. Geistlinger: *The Austrian Nuclear Energy Prohibition Act (of 1978) vs. the Joint Declaration on the*

*Application of the Euratom Treaty*, Salzburg, 1994 [short title, transl.]). In the same way, **Euratom membership may threaten the Constitutional Act Establishing a Nuclear-Free Austria (1999).**

2. Year after year, Austria, with its non-nuclear status laid down in the country's constitution, **contributes more than EUR 40 million to make Euratom operate.** It thus assists, too, the nuclear "renaissance" peddlers distributing cheap Euratom loans to new nuclear plants (Romania's Cernavoda-2 reactor, etc.). And the most insane nuclear research project ever, the international fusion reactor (ITER), was agreed and hailed with euphoria by Austria's minister of science, Elisabeth Gehrer, when the final decision was taken in the EU Council last year.

3. The widely claimed Euratom revision conference could have been obtained in exchange for Austria's (and/or some other states') signature under the EU Constitutional Treaty in 2003. With this chance missed, unanimity among all 27 member states would be required for such a conference to be held - making it an utter illusion.

Five member states (Austria, Germany, Hungary, Ireland and Sweden) did issue a joint declaration annexed to the EU Constitutional Treaty of 2003, stating that the essential provisions of the ET have to be revised and updated. They would therefore support the idea of an intergovernmental conference, which should be convened as soon as possible. But nothing has happened. Even when it held the EU presidency in the first half of 2006, and despite strong announcements by environment minister Josef Proell, the Austrian government finally gave up holding a mere 3-hour discussion on Euratom and Austria's position in it, which it had

planned for June 2006. This puts the **revision conference light-years away!** True, it will not be easy at all to get Austria's main political forces moving on the exit issue. Yet here, at least, Austria could act on its own, negotiate on its own, and does not depend on the consent of 26 other governments. And we citizens groups can "hammer" at our government and parties, i.e. concentrate on an aim much "easier" to localize than whenever the EU as a whole is the main lobbying ground.

## What do Austrian politicians say?

What is already looming between the lines above is that the main ruling parties in Austria, the Social and the Christian Democrats (SPOE and OEVP, respectively), cannot be counted on to take any initiative toward leaving Euratom. Especially so when they are ruling together (*The Big Coalition*), as they now are. This cannot be an argument, though, for not preparing the ground. So what political support does the Leave Euratom Campaign have at present, what perspectives are there for widening it?

**The Greens'** attitude had at first been hesitant on the national level. On July 4 however, their spokesperson for environmental matters, MP Ruperta Lichtenecker, gave written confirmation of the national Greens' support for Austria's withdrawal from Euratom. Until then, support had been expressed only in a number of regional branches of the Austrian Green Party. The most important of these voices had come from the first-ever Green regional minister, Rudolf Anschöber, who is in charge of the environment within the government of Upper Austria (neighbour to Czech Temelin NPP): *"We have long been counting on Euratom reform, on a revision*

conference. However, no majority can be found for this within the Union at present. The scandal of subsidizing nuclear energy through millions of Austrian taxpayers' money must not continue. There is now clear expert proof that withdrawal from Euratom is legally possible and feasible for EU member states. Therefore, Austria has to launch an initiative aimed at terminating its Euratom membership. This is important not only to preserve the credibility of Austria's antinuclear policy, but also to maintain an efficient counter-weight to the nuclear lobby's current PR offensive. Austria must not support nuclear energy, but rather use the (Euratom) money saved to cover the financial needs of the new Green Electricity Law required to implement the big energy paradigm change!" (Press conference, Mar 19, 2007.)

**Austrian NGOs supporting the Leave EURATOM Campaign:**  
(With the exception of WWF-Austria, all relevant Austrian NGOs in the nuclear, environmental and EU policy fields are comprised in this list.)

|                                                                 |                                                                                                                                                                |
|-----------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------|
| ARGE Nein zur Atomkraft, Ja zur Umweltatomstopp_oberoesterreich | Nuclear Dangers                                                                                                                                                |
| ATTAC-Austria                                                   | Resistance for Peace                                                                                                                                           |
| Carinthian Platform Against Nuclear Dangers                     | SOL (Sustainable Lifestyle)                                                                                                                                    |
| Friedenswerkstatt Linz (peace org.)                             | Umweltdachverband (big umbrella org. comprising a great number of environmental & conservationist orgs, e.g. the Federation for the Protection of Nature/OENB) |
| Global 2000 (Friends of the Earth Austria)                      | Vienna Platform Against Nuclear Dangers                                                                                                                        |
| Greenpeace Austria                                              | Vorarlberg Platform Against Nuclear Dangers                                                                                                                    |
| Lower Austrian Platform Against Nuclear Dangers                 |                                                                                                                                                                |
| Permakultur                                                     |                                                                                                                                                                |
| PLAGE-Salzburg Platform Against                                 |                                                                                                                                                                |

**Social Democrats (SPOE) and Christian Democrats (OEPV/People's Party)**, do not want to touch at the status quo. They are clearly afraid of waking the sleeping dogs, i.e. taking up the fight with many in the Union that would be heavily upset if one country declared its will to get out of Euratom. As a corollary to this, they blow up very secondary Euratom advantages into fictitious counter-weights to its scandalous flaws and anachronisms. And they do not WANT to know or

## Actions taken

### 1. Train advertisements

From December 2006 to June 2007, *atomstopp\_oberoesterreich* took the message "Euratom - 50 years is enough!" on the rail(s). It travelled along on nine intercity trains throughout the country: an ad had been placed in the train schedule leaflet, which is regularly distributed into each compartment of the fast trains. (This and other documents can be seen at [www.atomstopp.at](http://www.atomstopp.at), and some at [www.plage.cc](http://www.plage.cc).)

### 2. Vienna Opera Ball - A dancing Euratom message

Every year, Austria's top social event is the traditional ball at the State Opera in Vienna. This year, on February 15, activists of

The right-wing **Freedom Party (FPOE)**'s spokesperson for environmental issues in parliament, Norbert Hofer - referring, too, to the expertise now elaborated which evidences the legal possibility of stepping out of Euratom - has told "the coalition parties (i.e. SPOE & OEPV) that if they want to make real antinuclear policy, they just have to vote for the FPOE parliamentary motion for withdrawal from Euratom." (Press release, Nov. 29, 2006.) The essential sentence in the motion reads: "The National Assembly shall pass a resolution calling on the federal government to take all steps required to make it possible for Austria to leave the Euratom Treaty." One of the two similar motions the FPOE has tabled on the subject was voted down by the SPOE-OEPV majority before the summer break, one is still pending. (FPOE support is not necessarily helpful, given its general right-wing stance. Still, one has to bear in mind that this is the party with which the Christian Democrats/OEPV formed a government from 2000 through 2006.) As appears from the above, the two biggest parties and ruling coalition,

admit that there IS the legal possibility of withdrawal, so they shove away the three expertises that corroborate this possibility. (See, however, **Regional parliaments & governments** and **Success: it's a topic now**, further below!)

Instigated by local groups in spring this year, the **regional parliaments (diets)** of the Vorarlberg and Salzburg provinces have each voted a resolution that moderately supports the Leave Euratom Campaign. The strategic essence of the Salzburg resolution is that Austrian withdrawal from Euratom should be considered in case no ET revision comes about within three years: "2. The Government of Salzburg Region shall call on the Federal Government - 2.1. to work toward a fundamental revision of the Euratom Treaty within three years, (...); 2.3. in case no fundamental revision of the ET comes about, to examine the withdrawal scenarios and, accordingly, declare Austria's readiness to withdraw." (Unanimously adopted May 9, 2007.)

*atomstopp\_oberoesterreich* and *PLAGE Salzburg* had ordered the expensive, hard-to-get tickets far ahead and had carefully prepared their act for months. On the crucial evening, the two couples and another male activist got inside the opera house without a problem, thanks to their outfit of absolute elegance. The ladies' robes were yellow satin and the men's tail-coats black - typical colours of anti-nuclear symbolism. Once inside, and as soon as they were stepping up the broad staircase to the main ball room of the classicist, 19th century palace, the five took off their capes or overcoats, exhibiting large no-nukes sun symbols that carried the slogan "GET AUSTRIA OUT OF EURATOM!" Whenever they opened their black fans, the people around saw the same slogan again. Underneath his jacket, one of the men had concealed a banner in fine silk-like tissue carrying Austria's red-white-red stripes, and the same words again. Every now and then, the group unrolled the banner to the eyes of the public, and of the TV and photographers' cameras. Thus a crowd of 5,000 was witness to the call to leave Euratom until far after

midnight. The butlers in livery and other watchdogs couldn't really do anything against the dignified presentation of the message, which met with great sympathy from most bystanders and even got applause several times. One activist even got inside the private box of Austrian chancellor Alfred Gusenbauer and had a brief exchange with him.

### 3. Regional and Austrian-wide opinion polls

After a regional poll carried out by a professional opinion poll institute in the summer of 2006 in Upper Austria, before the elections to the regional parliament, *atomstopp\_oberoesterreich* and *PLAGE* Salzburg ordered an Austrian-wide poll from *Market-Institut* to find out what people think of Euratom membership. Among its findings, presented at mid-March 2007:

while 63% of the Austrians are in favour of withdrawal from Euratom, only 5% strictly oppose such a step. If a referendum were held on the issue, 65% would vote for withdrawal.

#### 4. First-ever backwards marathon

On two weekends in April and May, participants in city marathons in the regional capital cities Linz and Salzburg exhibited signs, banners, and wore sports dresses reading "No to nuclear power!" and "Leave EURATOM!"

Several thousand runners of all ages and walks of life took part in each of the largely publicized marathons, and many more watched and saw the slogans. In the Linz Marathon, they were probably witnessing a world première: Jakob Neff, a 20-year-old activist of the *Salzburg Platform Against Nuclear Dangers (PLAGE)*, did the first quarter of the race backwards,

catching everybody's eye and attracting lots of applause - both for the sportive feat and for his message to the Austrian government "Get out of Euratom!". A message also carried by his father, Thomas, and his brother, Stefan, who were running at his sides "the normal way" in order to warn him of obstacles and the like. (Anybody who cannot imagine how hard it is to run backwards, ought to try a mere 100 metres instead of 10,000!)

#### Success: it's a topic now

From the start, we proponents of the Austrian Leave EURATOM Campaign hadn't expected quick success. What is a tangible success so far, is that not only regional politics but the federal government, too, have been forced to react. While an article in the national daily *Die Presse* following our presentation of the Austrian-wide

## Euratom information blockade & distortion

### Press conference, 17 Jan. 2007:

To present the Leave EURATOM Campaign, it was for the first time ever that all major anti-nuclear and environmental organisations except *WWF-Austria* held a common press conference in Vienna on Jan 17, 2007. This fact should by itself have led to a minimum of media coverage, independently of the topic. The topic itself was quite a sensational demand with tremendous implications for external and domestic policy. All Austrian media and numerous decision-makers had been invited; a number of journalists had been called personally the day before, and several had shown great interest. Nonetheless, **not a single journalist from a mainstream paper, TV or radio station showed up** at the press conference. The Austrian Press Agency (APA) did circulate the NGO press release to TV, radios, newspapers and magazines. But the editors weren't interested. A small article in the Vienna edition of Austria's big tabloid *Kronen-Zeitung* (some 3 million copies a day for a population of about 8 million) was the only resonance in the mainstream media. Our first spectacular action seemed to be destined to quite the same treatment...

### Opera Ball action, 15 Feb. 2007:

While a public of 5,000 was repeatedly confronted with the Leave EURATOM Campaign message at the State Opera Ball in February, TV watchers throughout Austria didn't get a glimpse of what the TV cameras couldn't possibly avoid recording from various angles of the opera house. In the days and weeks that followed, we went to great lengths to get hold of what some cameras must have filmed - in fact to the top of the Austrian public radio & TV ORF's hierarchy. After a series of the usual tricks and dodges used to brush off "nasty askers" or pump the courage out of them, we were finally told there was "nothing on record" at the

Austrian state TV "than what had been broadcast on that very evening"; "no document showing other scenes of the event in our archives"...

### Austria-wide opinion poll, mid-March, 2007:

Again, only a few papers reported from the press conference held together with the Green Environment Minister of Upper Austria, and some of them, e.g. the centre-right daily *Die Presse*, gave more room to distorting statements by the Foreign Ministry than to the poll results and NGO statements.

### Killing the news...

A mere two days before the five proponent NGOs presented their campaign on Jan. 17 (see above), the environment ministry announced a press conference of its own, for the same day, same hour. His Excellency, the minister himself, Josef Proell (Chr. Dem./OEV), was to give an evaluation of Austria's climate policy - *the* environmental topic of the moment.

### A little media breakthrough

### A major national newspaper...

We did manage *some* media breakthrough, though: From an unjustifiable refusal of an earlier article, the *Salzburger Nachrichten*, one of Austria's more reputed papers with a circulation of 150,000, owed *PLAGE* a compensation. So both a big, fantastic picture of the Opera Ball surprise jig and the basic information on the Quit EURATOM Campaign appeared on the paper's prominent page 3 on Feb. 19, in the run-up to the 50th anniversary of the Euratom Treaty. Also, the Opera Ball act was so impressive that several other national and local papers did publish photos and articles.

opinion poll on the exit campaign said almost nothing about the poll but hurried to ask the foreign affairs ministry for its downplaying statement on the NGOs' demand for termination of the ET by Austria, the minister *had* to reply there. Just as the environment minister was obliged to do when the Vorarlberg deputies to the Second Chamber of Parliament (regional chamber) officially put the issue on the table (cp. *Vorarlberger Nachrichten*, Sep. 9, 2007). And quite recently, environment minister Josef Proell, in an answer to a letter by *atomstopp\_oberoesterreich*, did condescend for the first time to indicate expert sources according to which a unilateral withdrawal from Euratom is allegedly impossible. These authors, however, have not dealt explicitly and exclusively with the issue of one or more countries wanting to step out of Euratom, whereas the three expertises concluding that such withdrawal is undoubtedly possible (see Part I in N.M. n° 658) concentrated on this very question. Also, Mr Proell gives no quotes, just titles of articles or books and their authors. Still, for the first time the minister doesn't just say withdrawal is impossible, but shows smatterings of argumentation. Meanwhile, we have forwarded Mr Proell's letter to Prof. Bernhard Wegener of Nuremberg-Erlangen University, who has done the most exhaustive of the three expertises on ET termination by one or several member states. In his answer, Prof. Wegener says that in his 70-page

expertise he has considered and disproved all the counter-arguments contained in the literature mentioned by minister Proell. By any means, there finally is a beginning of debate and argument.

### Outlook

The campaign may have to go on for years and wait for a special window of opportunity to gather enough momentum and public pressure to weigh on the Austrian government. We will come back at least every time something scandalous happens in the name of Euratom: financing of new reactors or upgrading, Commission inaction against state aid and other privileges for the nuclear industry, directive proposals for common safety standards on the lowest level rather than the highest, nuclear energy research getting more funds than any other energy technology. It is preferable not to give details on strategic lobbying or coming actions. In any event, **occasions** to develop the case for Austria's withdrawal from Euratom will be, for instance: the run-up to the 30th anniversary of Austria's "no" to nuclear power in the 1978 referendum on the operation of its first and only NPP, at Zwentendorf; the revival of the EU constitutional process, if under a different name; the overhaul of the Austrian constitution which is on the way; the next elections to the European Parliament... (Any hint to other crucial dates and action lines will be welcome.)

**Instruments** envisaged to push the

topic and/or further clarify the issue: getting further regional parliaments and governments to take resolutions like those in Vorarlberg and Salzburg; a hearing in the Austrian parliament; panel discussion (between politicians and/or legal experts for and against the unilateral withdrawal option). Another "instrument" hopefully will be the **political support from sister NGOs in the EU**: in one of the next issues of the Nuclear Monitor, we hope to include a short letter and questionnaire addressed to all of YOU. Mind that we do NOT expect you to work for us, just to express your support. For example, we have been thinking of a group of NGO representatives from various EU countries to hold a supporting press conference in Vienna, and possibly meet with Austrian MPs, government officials and maybe ministers. If time and money allows, we should develop special ties with NGOs in Denmark and Ireland, for instance.

Also, we are sure to come up with **surprise actions** again, like the one at the Opera Ball, to support certain lobbying steps and boost attention for the political demand.

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## IN BRIEF

**Windscale radiation; cancer toll goes on rising 50 years after UK's worst nuclear accident.** Britain's worst nuclear accident so far, the Windscale fire in Cumbria 50 years ago, released twice as much radioactive debris as was previously thought. Scientists studying weather patterns and amounts of radioactive material distributed after the October 1957 blaze say previous estimates have played down its deadly impact. Sellafield, formally Windscale and home of the 1957 reactor fire, lies on the Irish Sea coast and alongside England's famous Lake District. In an area of just one mile by one mile and a half, the site hosts the lethal legacies of nuclear weapons material production, decades of commercial reprocessing residues - and the reputation to go with them. 'We have had to double our estimates of amounts that were released,' said former UK Atomic Energy Authority researcher John Garland. As a result of this re-evaluation, scientists say the fire - which sent a plume of cesium, iodine and polonium across Britain and northern Europe - may have caused considerable more cases of cancer than had been estimated previously. For decades it was said that little harm had been done and that only a few cancer cases had been triggered. Already in 1990 radiation experts calculated that up to 200 cases of cancer - including thyroid and breast cancer and also leukemia - could have been triggered by the fire's emissions. Now researchers say they may have to raise that estimate yet again. According to epidemiologist Professor Richard Wakeford, of Manchester University, it is impossible to determine which individual cancer cases might be linked to the incident at

Windscale. 'We can only say an excess in cancer cases was caused by the fire.'

The fire occurred when graphite rods used to control reactions in the nuclear plant's core caught fire. For two days the core blazed out of control. At one point workers used sledgehammers to try to knock the damaged, highly radioactive fuel rods out of the reactor before eventually managing to extinguish the blaze. After the fire, the government placed a six-week ban on consumption of milk from cows grazing within 200 miles of Windscale. However, the weather carried nuclear contamination far beyond that boundary and it covered much of England and parts of northern Europe. The crippled reactor core, a legacy of the postwar Government's dash to acquire the atomic bomb, has remained untouchable, deemed too volatile for decommissioning, and the object of wild speculation about what lies at its noxious heart.

**The Observer, 7 October 2007 / WISE News Communiqué 532, 27 June 2000**

**Australia: nuke decisions after next elections.** The Federal Government in Australia shelved the controversial decision on the final -site of a nuclear waste dump until after the election. The Government is determined to establish a nuclear waste dump in the Northern Territory and has already carried out environmental and heritage studies on three sites. Late September a fourth site was announced to be under active consideration. But the next day the Government shelved the decision until after the elections. The Commonwealth has already legislated to override objections by the Northern Territory Government to a waste dump. The Government focused on the Territory after its efforts to establish a dump in outback South Australia were countered by years of public backlash and legal moves by the Rann Labor Government. On Sept. 27 it was revealed that the Government had also shelved until beyond the election legislation to facilitate the eventual establishment of a nuclear industry in Australia. There is no fixed date yet for the next general elections, but they will take place late November/early December.

**The Sydney Morning Herald, 28 September 2007**

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## The NUCLEAR MONITOR

The Nuclear Information & Resource Service was founded in 1978 and is based in Takoma Park, Maryland. The World Information Service on Energy was set up the same year and is housed in Amsterdam, Netherlands. NIRS and WISE Amsterdam joined forces in 2000, creating a worldwide network of information and resource centers for citizens and environmental organizations concerned about nuclear power, radioactive waste, radiation, and sustainable energy.

The Nuclear Monitor publishes international information in English 20 times a year. A Spanish translation of this newsletter is available on the WISE Amsterdam website ([www.antenna.nl/wise/esp](http://www.antenna.nl/wise/esp)). A Russian version is published by WISE Russia, a Ukrainian version is published by WISE Ukraine and a Japanese edition is published by WISE Japan (latter two available at [www.nirs.org](http://www.nirs.org)). Back issues are available through the WISE Amsterdam homepage: [www.antenna.nl/wise](http://www.antenna.nl/wise) and at [www.nirs.org](http://www.nirs.org).

### Receiving the Nuclear Monitor

US and Canadian readers should contact NIRS to obtain the Nuclear Monitor (address see page 11). Subscriptions are \$35/yr for individuals and \$250/year for institutions.

### Sign the Nukes/Climate Statement!

"We do not support construction of new nuclear reactors as a means of addressing the climate crisis. Available renewable energy and energy efficiency technologies are faster, cheaper, safer and cleaner strategies for reducing greenhouse emissions than nuclear power."

Sign at: <http://www.nirs.org/petition2/index.php>

### New on NIRS Website

Presentation by David Schlissel of Synapse Energy Economics before the Utah State Legislature Public Utilities and Technology Committee on The Risks of Building New Nuclear Power Plants. Very good primer on nuclear economics with data on the economic pitfalls and problems that await a new generation of reactors.

NIRS Statement on South Texas Reactor License Application

### Help Stop the Loan Guarantees

A provision in the energy bills now before Congress could allow the Dept. of Energy to give \$50 billion or more in taxpayer loan guarantees for new atomic reactor construction.

Call your Congressmembers today: 202-224-3121--tell them no taxpayer money for new reactors! And sign the petition at [www.nukefree.org](http://www.nukefree.org)

# The NUCLEAR MONITOR

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